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Markwayne Mullin's Confirmation Hearing Was the Funniest in Ages—and Might Have a Stunning Outcome

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Sen. Markwayne Mullin's nomination for Homeland Security secretary is not a particularly controversial one, as Trump appointments go. He's spent a dozen years in the House and Senate, he gets along well with his Republican (and many Democratic) colleagues, and most importantly, everyone will be glad to see Secretary Kristi Noem go.

The issue for Mullin is that there's *one* Republican colleague he absolutely does not get along with, and the feeling is mutual. It's a senator whom Mullin recently [called](#) a "freaking snake." Mullin also said he understood why that senator's neighbor "did what he did"—beat him to a pulp—in a 2017 assault. That senator is Rand Paul, the chairman of the Senate Homeland Security Committee, which confirms DHS nominees.

During Wednesday's Senate Homeland Security Committee hearing into Mullin's nomination, bygones would not be bygones. It didn't take long to recognize that the core of the hearing would be an honor dispute between two strong-willed men.

Paul opened the hearing by describing his attack in rich detail: The six broken ribs, the damaged lung, the infections and pneumonias, the coughing of blood, the chest tubes.

"Tell the world why you believe I deserved to be assaulted from behind, have six ribs broken, and a damaged lung," Paul addressed the nominee. "Tell it to my face why you think I deserved it. And while you're at it, explain to the American public why they should trust a man with anger issues to set the proper example for ICE and Border Patrol agents."

A hearing like this, in which the nominee has recently joked about an assault on the committee chairman, is a rarity. But the opportunity was nevertheless there for a sort of staged closure: Mullin could apologize, say he got carried away, and pledge to work with the chairman going forward.

Mullin did not choose that path. When he first responded to Paul, Mullin acknowledged that the two "just don't get along," and aggressively said to Paul that it "seems like you fight Republicans more than you work with us." When Paul pressed him again about his lack of apology, lack of contrition, and inability to even say he "misspoke," while ribbing him about his "low impulse control" and presentation of "machismo," Mullin didn't waver.

"I did not say I supported" the attack, Mullin said. "I said I understood it."

Paul then noted that there's a "pattern" of Mullin using violent rhetoric, and played a clip reel of Mullin in past hearings and interviews. There was, of course, the [incident in which he nearly got into a fight](#) with Teamsters President Sean O'Brien during a hearing. But there were also some interviews in which Mullin—somewhat tongue-in-cheek, but not entirely—talked about how sometimes people need to get punched in the face, how canings and duels were appropriate ways to settle disputes, and how he's "not above biting" in a fight.

Mullin observed, in his response, that O'Brien was sitting immediately behind him in the current

hearing, as the two had since made up and become friends. Things only got more absurd as the exchanges between the chairman and the nominee petered out. Paul asked him whether he believed caning and dueling were still reasonable ways for people to settle disputes. Mullin suggested that “dueling between two consenting adults” could still be an option.

“It’s been illegal for 170 years,” Paul said. “There’s no precedent for *legal dueling*. Even then, they fled the country.”

The personal hostility of the chairman, combined with most Democrats’ reflexive opposition to anyone Trump would nominate to run his Department of Homeland Security, meant that Paul and the top Democrat on the committee, Michigan Sen. Gary Peters, were often teaming up against Mullin.

One thread that Peters pulled on was whether Mullin had inflated his background. As the Washington Post [reported](#) before the hearing, Mullin has never served in the military, but he has often told stories alluding to being in hairy situations “overseas” while on “special assignments.” He has referred to the “smell” of war. In the hearing, Mullin described an “official,” “classified” trip from a decade ago which only “four people” were read in on. He refused to offer any more details in an open setting. As Paul and Peters tried to get more information, they lost their ability to not wryly make fun of him, with Paul describing it as “this super-secret mission.”

“No, I did not say ‘super-secret,’ sir,” Mullin responded.

“Only four people know?” Peters said. “That’s pretty secret!”

When Mullin was asked whether it was related to his role on the House Intelligence Committee, Mullin said he wasn’t on that committee at the time of his mission. He was, he said, on the Energy and Commerce Committee.

“So it was an Energy and Commerce top-secret effort?” Peters said, as dryly as he could.

“Sir, what I’m getting upset about a little bit here is your tone, that you’re saying it in a condescending way,” Mullin responded. “I did what I was asked to do.”

At the end of the hearing, committee members agreed to meet in a secure facility on Wednesday afternoon to hear Mullin regale them with his tales of daring from a decade ago. They plan to vote on his nomination on Thursday.

After the hearing, Paul confirmed that he would not support Mullin.

“I think there are anger issues. There’s a lack of contrition both about the violence perpetrated on me, really the violent episode he was involved in in the Senate committee, where he’s told the media, frankly, that he doesn’t regret it,” Paul told reporters after the hearing. “The fact that he can’t bring himself to say that we really shouldn’t settle political questions with violence, I think that would be a terrible example for ICE and for Border Patrol agents.”

The Homeland Security Committee comprises eight Republicans and seven Democrats. Why, then, did Mullin so freely refuse to apologize to the Republican committee chairman for joking about his maiming? While we can’t dig into his mind, Mullin likely knows that he seems to have the support of at least one Democrat on the committee: Pennsylvania Sen. John Fetterman. Fetterman [announced](#)

his support for Mullin shortly after Trump announced his nomination.

While Fetterman was gracious to Mullin during his questioning, though, he was unusually coy about the status of his support. He said at the end of his time that he would “remain with an open mind” as he listened to the rest of the hearing.

I asked him after the hearing whether he was still a certain yes on the nomination.

“I mean, I got some B’s in math in school, so yeah, I’m aware of the math there,” he said, acknowledging the swing nature of his vote. “I think I’m familiar with the circumstances we find ourselves in.”

So I asked the question again: Is he a yes?

“Accept the mystery,” Fetterman pronounced.

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